

Jogendra Singh v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 19 September 2018 · Writ-C No. 31836 of 2018 · **Writ disposed of; consumer relegated to Clause 6.5.**

HEADNOTE

On a writ seeking correction of an ata-chakki electricity bill for a period when the house was locked, adjustment of deposits, instalments and restoration of supply, the Allahabad High Court declined to entertain the petition because Clause 6.5 of the U.P. Electricity Supply Code, 2005 furnishes a statutory remedy. The consumer was left free to approach the appropriate authority within ten days; that authority was to decide by a speaking order within fifteen days after hearing him. Coercive action was stayed for forty days.

FACTUAL SUMMARY

The petitioner, a consumer of Dakshinanchal Vidyut Vitran Nigam Ltd. with an ata-chakki supply, alleged that he and his family had locked their house and closed the mill for about four years while he underwent medical treatment, so no energy was consumed. After depositing some amount on return, he sought a mandamus to decide his representation, issue a corrected bill, adjust those deposits, grant easy instalments, and restore the connection.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correctness

HOLDING

A writ raising a dispute as to the correctness of an electricity bill is not to be entertained where the consumer has a statutory remedy under Clause 6.5 of the U.P. Electricity Supply Code, 2005; the consumer may approach the appropriate authority under that clause. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE BILL, ADJUSTMENT OF DEPOSITS, INSTALMENTS AND RESTORATION OF SUPPLY

Left to the Clause 6.5 authority to consider and decide in accordance with law after hearing the consumer. ¶ 1